

Statement of Work

Project Name: Technical Assistance for USEPA on Desotec Project

Period of Performance

The period of performance for this Task Order (TO) is from date of award up to 3 years.

EPA Contract Officer Representative (COR)

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Background:

Desotec US LLC (Desotec) operates a carbon reactivation facility located in the Colorado River Indian Tribes (CRIT) Industrial Park near Parker, Arizona. Desotec purchased the facility in June 2023 from Evoqua Water Technologies LLC (Evoqua). USEPA transferred the Resource Conservation and Recovery Act (RCRA) permit from Evoqua to Desotec. The Colorado River Indian Tribes (CRIT) is a co-Permittee under the Permit by virtue of its ownership of the land on which the facility is located and its status as a lessor of that land to Desotec.

The facility treats spent activated carbon that has been used by industry, state, tribal, federal government agencies, and/or municipalities for the removal of organic compounds from liquid and vapor phase process waste streams. Once the carbon has been used and is spent, it must be either disposed of in a landfill or reactivated at a facility such as this facility operated by Desotec. A carbon reactivation furnace is used by Desotec to reactivate the spent carbon. The exhaust from the furnace enters an afterburner and air pollution control equipment before exiting the smokestack to the atmosphere. Some of the carbon received at the Parker facility is designated as a hazardous waste under the RCRA regulations. Much of the carbon received at the facility is not a RCRA hazardous waste, as it is neither a characteristic nor a listed waste.

Evoqua previously completed the performance demonstration test (PDT) in October 2022 and remained in continual discussions with USEPA Region 9 regarding the scope of a subsequent retest in the following months prior to and after the sale of the facility. After various discussions, submissions, and eventual dispute resolution filings, including a January 16, 2024, Dispute Resolution Notice and USEPA's subsequent July 15, 2024, Dispute Decision, the facility is pursuing a complete retest.

This contract is to support USEPA Region 9 in oversight of the Desotec implementation of the Performance Demonstration Test Plan (PDTP) and Quality Assurance Project Plan (QAPP), in addition to performing split sampling during the PDT testing. Once the test is completed, the contractor is to review the Performance Demonstration Test Report (PDTR) and provide comments for use by EPA in correspondence with the facility. In addition, the contractor is to review the air modeling task, and review of the human health, and ecological risk assessments (HHERA) work plan and report that incorporate the emission results and operational data from the PDT.

Objective:

The objective is to hire a contractor to support USEPA Region 9 in conducting oversight of the Desotec PDTP and implementation of the QAPP during testing. To provide oversight and to perform split sampling during the PDT testing. To review the PDTR and provide comments for use by EPA in correspondence with the facility. To perform follow-up review of the facility's responses to comments. In addition, the contractor is to review the air modeling task and its input to the human health, and ecological risk assessments (HHERA) work plan and report. The air model and HHERA will implement the PDT emission results and operational data.

Scope of Contract:

Task 1 - Administration, Invoices, and Progress Reporting: The Contractor shall provide (in months where there has been activity) invoices and progress reports detailing activities, corresponding level of effort in hours and dollars expended by task and personnel, status of deliverables, and any barriers that may affect the completion of a task. The Contractor shall also meet with the COR, via conference call as determined by the COR, on a periodic basis (anticipate conference calls every month) to discuss progress achieved in meeting the objectives of the work plan.

At the start of this work, USEPA and the Contractor shall have an initiation meeting via conference call to discuss the objectives and schedule of the work laid out in this SOW.

Task 2 – The Contractor needs to travel to the facility to provide oversight during the PDT testing. The assumed schedule for this work is fall 2025. This task is to support USEPA Region 9 in oversight of Desotec's implementation of the PDTP and QAPP for the Desotec facility located on CRIT reservation near Parker, Arizona. To prepare for this task, the Contractor needs to review Region 9's dispute decision documents and the facilities documentation of differences between the old and new PDTPs and QAPPs.

The contractor needs to perform split sampling of the scrubber water discharge prior discharging to the wastewater treatment plant. The Contractor needs to review and evaluate the results of the split sampling and provide USEPA with an evaluation of the results.

Task 3 –

The Contractor needs to review the PDTR and provide comments for use by USEPA in correspondence with the facility. Perform follow-up reviews of the facility's responses to comments. The budget for Task 3 also includes participation in three 1-hour meetings by telephone with USEPA and the facility. The probable schedule for this work is winter/spring of 2026.

Task 4 – Support USEPA in the review the air modeling task, and review of the human health, and ecological risk assessments work plan and report that incorporates the emission results and operational data from the PDT. The air modeling is intended to reflect dispersion and deposition of emissions under normal operating conditions that will also be used in the risk assessment. The assumed schedule for this work is during June/July 2026. One of the objectives of the PDTP is to collect operating data and emissions that will be used in the HHERA. This data that is collected is input for the modeling.

Personnel Requirements:

The contractor staff assigned to this project shall be knowledgeable of the Resource Conservation and Recovery Act (RCRA) Subpart X and Clear Air Act Part 63 Maximum Achievable Control Technology regulations. Their experience needs to include Performance Demonstration Testing of RCRA permitted units with air pollution control equipment. In addition, they need to have experience in air modeling, human health and ecological risk assessment work plans and reports. The results of the sampling taken during testing at the air pollution control equipment stack will implicate the subsequent HHERA work plan and report.

Task #	Deliverable Description	Due date
Task 1	Invoices and progress reports	Monthly (when there has been billable activity)
	Task Order initiation meeting with EPA (conference call)	Within 2 weeks of TO issuance
Task 2	PDT Oversight and Split Sampling Evaluation	Within 45 days after test
Task 3	PDTR Review Comments	Within 30 days from receipt of report
Task 4	a. HHERA Work Plan Comments b. Air Modeling Comments c. HHERA Report Comments	Within 30 days from receipt of HHERA Work Plan Within 30 days from receipt of the Air Model information. Within 30 days from receipt of Report